

## 25NNCV04476 25NNCV04476

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Case Number: 25NNCV04476 Hearing Date: August 21, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Deem Requests For Admission Admitted; Request For Sanctions

Hearing Date: 8/21/26

CASE NO.: 25NNCV04476

CASE NAME: Barberio Enterprises Inc. vs Scott Selway, et al.

Moving Party: Plaintiff Barberio Enterprises Inc. dba Westco Service Co.

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT.

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at [email protected] or by telephone at (818) 260-8422.

#### Parties

must appear on all other matters scheduled for this case.

#### BACKGROUND

This is a breach of fiduciary duty action.

Defendant Scott Selway, founder of defendant Selway Mechanical, was employed by plaintiff Barberio Enterprises Inc., dba Westco Service Co. (Plaintiff) from March 2014 to April 2024. (Comp., ¶¶ 2, 4.) On June 26, 2025, Plaintiff filed a Complaint against Scott Selway and Selway Mechanics (collectively, Defendants) as well as Michael Dean Duncan, and Infinite Circulation alleging that all defendants misappropriated trade secrets and breached several duties.

On June 26, 2026, Plaintiff filed the instant motion to deem requests for admission (RFAs) served on Defendants Scott Selway and Selway Mechanical admitted.

No oppositions have been filed as of August 13, 2026.

#### LEGAL

#### STANDARD

A party must respond to requests for admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) “If a party to whom requests for admission are directed fails to serve a timely response... (a) [that party] waives any objection to the requests, including one based on privilege or on the protection for work product...” (Code Civ. Proc., § 2033.280, subd. (a).) “The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7.” (Code Civ. Proc., § 2033.280, subd. (b).)

#### DISCUSSION

Plaintiff contends that Defendants have failed to timely respond to the RFAs on or by the

statutory deadline and seek an order deeming RFAs admitted. (Mot., p. 1.)

Defendants also request sanctions in the amount of \$1,760.00.

#### Deem Request for Admission Admitted

Here, Plaintiff served

Defendants with the RFAs by electronic service on March 18, 2026. (Mot., p. 4; Manninger Decl., ¶ 3, Exh. A-B.) Plaintiff contends that responses were due April 21, 2026. (Mot., p. 4; Manninger Decl., ¶¶ 5-6.) As of June 26, 2026, Plaintiff declares that Defendants have not provided verified responses or requested an extension to respond. (Mot., p. 6; Manninger Decl., ¶¶ 7-8.) Plaintiff has not granted any extensions to Defendants. (Manninger Decl., ¶ 9.)

Since Defendants

were properly served and Defendants have failed to respond to discovery requests by the statutory deadline, Plaintiff is entitled to an order deeming RFAs admitted.

Accordingly, the

motion is GRANTED.

#### Sanctions

Sanctions are

mandatory against the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to deem RFA as admitted. (See Code Civ. Proc., § 2033.280(c).) The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a

sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the

amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Defendants’

failure to comply with discovery requests necessitated the motion, and the conduct is subject to sanctions. (See Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a).) Moreover, The Court finds Plaintiff’s Notice of Motion complies with Code of Civil Procedure section 2023.040.

Plaintiff

requests sanctions in the amount of \$1,760 reflecting 4 hours at a rate of \$425, plus the \$60 filing fee. (Mot., p. 6; Manninger Decl., ¶ 10.) Plaintiff’s counsel declares this time was spent reviewing the discovery record, preparing this motion, preparing the supporting declaration, preparing the proposed order, and arranging service. (Manninger Decl., ¶ 10.)

The Court, in

its discretion, reduces sanctions to \$485 consisting of \$425 in attorney’s fees (1 hour x rate of \$425 per hour), plus the \$60 filing fee incurred.

Accordingly,

the Court GRANTS Plaintiff’s request for imposition of sanctions against Defendants, jointly, in the amount of \$485.

CONCLUSION

AND ORDER

Plaintiff

Barberio Enterprises Inc.’s motion to deem RFAs admitted is GRANTED.

Plaintiff

Barberio Enterprises Inc.’s request for sanctions is GRANTED in the amount of \$485, to be paid by Defendants to Plaintiff 30 days from this ruling

MOVING

PARTY to

provide a proposed order consistent with this ruling within five days and provide notice of this order.

MOTION

TO COMPEL INITIAL RESPONSES; REQUEST FOR SANCTIONS

Hearing Date: 8/21/26

CASE NO.: 25NNCV04476

CASE NAME: Barberio

Enterprises Inc. vs Scott Selway, et al.

Moving Party: Plaintiff

Barberio Enterprises Inc. dba Westco Service Co.

Responding

Party: Unopposed

Notice: Sufficient

Ruling: GRANT.

#### BACKGROUND

This is a breach of fiduciary duty action. Defendant Scott Selway (Selway), founder of defendant Selway Mechanical (Mechanical), was employed by plaintiff Barberio Enterprises Inc., dba Westco Service Co. (Plaintiff) from March 2014 to April 2024. (Comp., ¶¶ 2, 4.) On June 26, 2025, Plaintiff filed a Complaint against Scott Selway and Selway Mechanical (collectively, Defendants) as well as Michael Dean Duncan, and Infinite Circulation alleging that all defendants misappropriated trade secrets and breached several duties.

On June 26, 2026, Defendants filed the instant motion to compel initial responses to Form Interrogatories, Special Interrogatories, and Requests for Production of Documents (RPDs) served on Defendants Scott Selway and Selway Mechanical.

No oppositions have been filed as of August 13, 2026.

#### LEGAL STANDARD

A party must respond to

requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., § 2024.020, subd. (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; Sinaiko, supra, 148 Cal.App.4th at 411.)

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)

## DISCUSSION

### Motion to Compel Initial Responses

Defendant Scott Selway

Plaintiff contends that Selway failed to timely respond to Form Interrogatories General, Form Interrogatories Employment Law, Special Interrogatories, and RPDs on or by the statutory deadline. (Mot., p. 2.)

Here, Plaintiff's counsel served Selway with the Form Interrogatories-General, Set One; Form Interrogatories-Employment Law, Set One; Special Interrogatories, Set One; and RPDs, Set One by electronic service on March

18, 2026. (Angulo Decl., ¶¶ 3-6, Exh. A-D.) Plaintiff contends that initial responses were due April 21, 2026. (Mot., p. 2; Manninger Decl., ¶¶ 10, 11-14.) As of June 26, 2026, Plaintiff declares that Selway has not provided verified responses or requested an extension to respond. (Manninger Decl., ¶ 17.) Plaintiff has not granted any extensions to Selway. (Manninger Decl., ¶ 18.)

Since Selway was properly served and Selway failed to respond to discovery requests by the statutory deadline, Plaintiff is entitled to an order compelling Selway to provide responses without objections to Form Interrogatories, both General and Employment Law, Special Interrogatories, and RPDs.

Defendant Selway Mechanical

Plaintiff contends that Mechanical failed to timely respond to Special Interrogatories and RPDs on or by the statutory deadline. (Mot., p. 2.)

Here, Plaintiff's counsel served Mechanical with the Special Interrogatories, Set One, and RPDs, Set One by electronic service on March 18, 2026. (Angulo Decl., ¶¶ 7-8, Exh. E-F.) Plaintiff contends that initial responses were due April 21, 2026. (Mot., p. 2; Manninger Decl., ¶ 10, 15-16.) As of June 26, 2026, Plaintiff declares that Mechanical has not provided verified responses or requested an extension to respond. (Manninger Decl., ¶ 17.) Plaintiff has not granted any extensions to Mechanical. (Manninger Decl., ¶ 18.)

Since Mechanical was properly served and Mechanical has failed to respond to discovery requests by the statutory deadline, Plaintiff is entitled to an order compelling Mechanical to provide responses without objections to the Special Interrogatories and RPDs.

Accordingly, the motion to compel initial responses is GRANTED.

Sanctions

The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See

Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Defendants’ failure to comply with discovery requests necessitated the motion, and the conduct is subject to sanctions. (See Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a).) Moreover, The Court finds Plaintiff’s Notice of Motion complies with Code of Civil Procedure section 2023.040.

Plaintiff requests sanctions in the amount of \$1,760 reflecting 4 hours at a rate of \$425, plus the \$60 filing fee. (Mot., p. 6; Manninger Decl., ¶ 19.) Plaintiff’s counsel declares that this time was spent reviewing the discovery record, preparing this motion, preparing the supporting declaration, preparing the proposed order, and arranging service. (Manninger Decl., ¶ 19.)

The Court, in its discretion, reduces sanctions to \$910 consisting of \$850 in attorney’s fees (2 hours x rate of \$425 per hour), plus the \$60 filing fee incurred.

Accordingly, the Court GRANTS Plaintiff’s request for imposition of sanctions against Defendants in the amount of \$910.

#### CONCLUSION AND ORDER

Plaintiff Barberio Enterprises Inc.’s motion to deem RFAs admitted is GRANTED.

Plaintiff Barberio Enterprises Inc.’s request for

sanctions is GRANTED in the amount of \$910 to be paid by Defendants to Plaintiff 30 days from this ruling

MOVING PARTY to submit a proposed order consistent with this ruling within five days and provide notice of this order.